



POLYGON B-500 AND THE
MANAGED UNITS OF
POLYGON B-501
SUB-CONDOMINIUM
REGIME
MANAGER RULES

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**POLYGON B-500 AND MANAGED UNITS OF POLYGON B-501 SUB-CONDOMINIUM
REGIME
MANAGER RULES**

INTRODUCTION

The following Condominium Manager Rules have been implemented by the Manager as provided for in section 9.15 of the Paraiso del Mar Master and Sub-condominiums Rules and Regulations and are established and provided for the benefit of the condominium residents, owners, and tenants alike. The rules are reasonable "rules for living" that must be enforced to ensure that the condominiums and surroundings are a comfortable, secure and pleasant place to live.

The cooperation of all residents in observing these rules is necessary. Residents who deliberately or repeatedly violate the Rules and Regulations, and abuse the rights of others are subject to Association action.

All management personnel have the authority to enforce the Rules and Regulations as set forth hereinafter.

CONDOMINIUM MANAGER RULES

1. GENERAL

a) No nuisances shall be allowed upon the property nor shall any use or practice be allowed which is a source of annoyance to residents or which interferes with the peaceful possession and proper use of the property by its residents.

b) Unit Owners are prohibited from posting signs, signals, illuminations, symbols, advertisements, or any type of equipment or foreign objects on inside or outside windows/balconies or doors. Any objects visible from a public or common area may be required to be moved out of view at the Association or Manager's request.

c) No television or radio antenna or any type of receiving or transmitting antenna or structure shall be erected on the exterior of the condominiums without the prior written consent of the Manager.

d) No condominium owner shall make or permit any disturbing noises in any unit or do or permit anything to be done therein, which will interfere with the rights, comforts or conveniences of other condominium owners.

e) It is prohibited: (1) to hang garments, rugs, towels, or the like, on any balcony railing, brick wall, or other wall; (2) to use clothes lines or drying racks on balconies or patios.

f) No resident of the development shall post any advertisement or poster of any kind including "For Sale" and "For Rent" signs in the condominium or the portion of the common area except, with the exception of items outlined in Section 2(b).

g) No Flags or banners are permitted to be displayed.

h) Tag sales, garage sales, and lawn sales are not permitted on community property.

i) Complaints regarding services provided in the community or the violation of Rules and Regulations contained herein or Master CC&R'S shall be made in writing to the Manager.

j) The Association will not be held responsible/liable for the theft or damage caused to a Unit Owner's personal property. The association recommends that each Unit Owner maintain insurance sufficient to cover their personal property.

k) Soliciting is prohibited on the Condominium property. The Association may designate an area, bulletin board, or newsletter which allows for advertising. Any posting must be pre-approved by the Association. Any advertisement may be refused without reason/cause.

l) Unit owners agree not to participate in activities which are potentially hazardous to other Unit Owners or any other persons on or near property. The Association shall not be held responsible for any injury that results from participation in hazardous or potentially hazardous activity. This includes, but is not limited to, activity on or near balconies, windows, stairs, pools, dumpsters and parking areas.

m) The Board of Directors, its Manager, its workmen, contractors, or agents shall have the right of access to any Unit at any reasonable hour of the day for the purposes of making inspections, repairs, replacement or improvement or to remedy any condition which would result in damage to other portions of the building or for any purpose permitted under the terms of the Declaration or the Bylaws. Except in case of emergency, entry will be made by prearrangement with the owner. In the event the Association finds that there are vermin, insects or other pests, it may take such measures as it deems necessary to control or exterminate same.

n) Any and all future property sales must be reviewed by the Home Owners Association attorney in order to make sure the proper language and working is included in the property deed to ensure compliance with the condominium regime rules and regulations.

2. COMMON AREAS

a) Only homeowners who are in good standing with all common charges and assessments paid up to date, are permitted to use any of the association's amenities, including but not limited to pools.

b) Each Unit owner agrees and understands that common areas such as entries, stairwells, community garages and hallways are to be for purposes of ingress (entry) and egress (exit) of the Condominium. These areas are not for any reason to be used for storage of personal property. Personal property left in Common Areas, in most cases, are in violation of fire codes. All objects must be removed and stored out of sight in owner's property when owner is not in residence. The Association reserves the right to confiscate and/or dispose of any personal property left unattended in Common Areas. People shall not loiter in Common Areas or use Common Areas as play areas. The following rules shall apply to the specified portions of the Common Areas:

Penthouse:

Center indentation (where unit number sign is located) - objects (planter, vase, bench, etc.) may not extend further than 48" from the back wall and width of said object must fit within the indentation space.

Door entry area - rugs may not exceed 4' X 8' and objects must fit within a footprint of 6' X 8' as measured from entry door and side wall.

2 Bedroom/3 Bedroom:

Door entry area - rug may not exceed 2' X 3' and objects must fit within a footprint of 4' X 6' as measured from the 3 entry doors.

Corner area opposite entry doors - object(s) (planter, statuary, etc.) must fit within a footprint of 36" X 36" of the 2 walls making up the corner. Object(s) may not block the view of or access of the fire extinguisher attached to the wall.

All:

Objects shall not create additional work, maintenance or cost to the HOA staff.

All objects must be removable and may not impede access to a unit's main entry door.

No objects shall be affixed to hallway walls.

No objects shall be placed on the railing ledges.

All objects shall be removed from Common Areas when units are not occupied.

c) Every member shall be liable for any and all damage to the common area and the property of the association, which shall be caused by said owner or such other person for whose conduct he is legally responsible.

d) The common areas should not be obstructed, littered, defaced, or misused in any manner

e) No baby carriages, strollers, bicycles, scooters or similar equipment may be left unattended in any portion of the common area.

f) No skateboarding, roller skating, roller blading, or bicycle riding is permitted on decks and pool areas.

g) Children of guests of homeowners who are visiting the community are the responsibility of the homeowner and must be supervised at all times while they are in common areas.

h) Homeowners are not permitted to use the common areas for parties and other events including the use of tents, chairs, or tables, without written permission of the Manager.

i) No homeowner shall move, remove, add or otherwise change landscaping on common areas.

j) Speeding on common grounds is not permitted. The speed limit is 15 mph.

k) Common Area Building Assets and Improvements

(i) Common Area/Exterior Walls. Shall be maintained by the HOA. No alterations to plaster or paint of any exteriors shall be made by owners without the appropriate written approval by the Association.

(ii) Wood Pergolas shall be maintained by the HOA, however any "approved" alterations to the pergolas including, but not limited to the addition of wood slats and reeds shall be maintained by the unit owner. Each owner shall repair, replace and maintain "approved" alterations to HOA standards.

(iii) Unit exterior wood doors ("**Doors**") constitute common area within the control of the Manager. The Manager shall control the type of Door and hardware (including specifications or requiring specific manufacturer products), and shall specify the surface stain to be used and maintenance of finish at all times ("**HOA Standards**"). Each Owner shall repair, replace and maintain such Owner's Doors within the HOA Standards.

(iv) Unit exterior glass (windows and doors) and frames and moldings therefor ("**Glass**") constitute common area within the control of the Manager. The Manager shall control the type of Glass (including specifications or requiring specific manufacturer products) to protect against hurricane damage, and hardware ("**HOA Standards**"). Each Owner shall repair, replace and maintain such Owner's Glass within the HOA Standards.

(v) Unit exterior metal railings ("**Iron**") constitute common area within the control of the Manager. The Manager shall control the type and look of Iron (including specifications or requiring specific manufacturer products) and shall specify the surface protection (paint, powder-coat, etc.) to be used and maintenance of finish at all times ("**HOA Standards**"). After the initial, one time only, refurbishing of a Unit's Iron, each Owner shall repair, replace and maintain such Owner's Iron within the HOA Standards. If Iron must be removed from the Unit for repair, replacement or maintenance, the Owner shall ensure the safety of the patio where the Iron has been removed by either installing (i) additional locks or disabling the door to prevent persons from accessing the patio, or (ii) temporary replacement railings approved by the Manager.

(vi) Security cameras and doorbell cameras are permitted to safeguard

owners and their property. Cameras shall be of the type and mounted in accordance with the design guidelines set forth in the HOA Standards.

l) The Manager has the right to approve of any Owner contractor (or to require use of a contractor from a Manager specified contractor list) to perform Doors, Glass Iron repairs, replacements and maintenance, other than: Glass cleaning, Door re-staining and oiling, and Iron cleaning and oiling.

m) If any Unit Owner fails to maintain Doors, Glass or Iron as required above, the Manager shall have the right to perform such repair, replacement or maintenance and specially assess the Owner for the out-of-pocket cost thereof, plus a reasonable administrative fee.

n) Additional rules and regulations are included in the Polygon B HOA standards. HOA standards have been established to provide standards and specifications for all design elements viewable outside of an owner's unit.

o) Smoking shall be prohibited in all indoor and outdoor common areas on the property of the Subcondominium B including, but not limited to, hallways, stairways, foyers, common rooms and facilities, pool decks, pool patios, exterior landings, front steps, entrance ways, roof tops, fire escapes, basements, storage areas, parking areas, driveways, walkways, lawns, gardens, athletic facilities, restrooms, restaurants, bars, seating areas, adjoining grounds and building and transportation facilities. No owner shall smoke in said areas or permit smoking by any occupant, agent, tenant, invitee, guest, friend, or family member in said areas. Smoking in violation of this rule shall constitute a nuisance pursuant to the terms and provisions of its constituent documents of the HOA. However, smoking will continue to be permitted inside individual units and on individual unit patios and decks.

For purposes of this Rule, "smoking" means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, or pipe, or any other lighted or heated tobacco, nicotine, or plant product intended for inhalation, including hookah and marijuana, whether natural or synthetic and shall also include the use of any electronic smoking device.

Notwithstanding the said prohibition against smoking, the Board may designate (or remove from designation) an outdoor area for smoking, provided the smoking area(s) shall not cause secondhand smoke to drift into indoor common areas, exclusive use areas or individual units.

3. MOVING IN & OUT RULES

a) The Master Administration and the Manager of the relevant Sub-Condominium Regime must be notified by each Owner via electronic mail or in writing prior to a move in/move out. The notification requires at least seven days advance notice, indicating the day (s) and time of the moves, the name of the mover and the size and type of the mover's vehicle.

b) Owners are fully responsible for the actions of their mover and may be advised by the Master Manager of any restrictions or special requirements with respect to the move.

c) Moving is restricted to the hours of 8:00 AM to 6:00 PM Monday through Friday and 10am to 4pm on Saturdays.

d) All crates, barrels, boxes and packing materials must be picked up from sight by movers, homeowners, or tenants. If necessary, a special pick up must be scheduled with the Manager.

e) Owners are responsible for any damage resulting from their move in/move out irrespective of whether the damage was caused by themselves or their movers.

f) Supervision of moving personnel is the responsibility of the Owner who is required to provide restroom facilities within the home, as well as an interior location for rest breaks and meals. Under no circumstances will personnel be permitted to use Public Areas or Common Areas for rest or meal breaks. Personnel arriving in their own vehicles must park in a designated location. Personnel are expected to be properly attired. Noise must be kept to a minimum and no radios or amplified music is permitted.

g) Owners are responsible for insurance relating to their move in/move out including liability coverage for and damage caused by their mover.

4. ADDRESS AND CONTACT INFORMATION

It is the obligation of Owners to keep their address and contact information including email address current with the Master Manager and the appropriate Sub-Condominium Manager. Failure to do so may result in unpaid or late billing fees that are the sole responsibility of the Owner. Required contact information should include email, mailing address and phone number.

5. BUILDING

a) No alteration to the outside of the unit may be made.

b) Terraces, and balconies are designated as Limited Common Elements and Units Owners are prohibited from mounting, installing, or otherwise attaching any item to their balcony/terrace. Unit owner's may not drill holes or otherwise alter their balcony, or the balcony above of the vertical support beams. Any items located on a balcony must not overhang the edge of the balcony and must be positioned so that if that item were to fall it would not fall to the ground. The following items are specifically prohibited on balcony/terraces:

(i) Bird feeders cannot be placed on any balcony/terrace due to their tendency to attract vermin to the building and create nuisance to other residents.

(ii) Only gas and electric grills are allowed. All other grills are prohibited. Built in grill areas are allowed subject to the pre-approval of the design and location.

(iii) Open Flame devices of any type are not permitted, including Tiki Torches and wood fire pits.

(iv) Owners will be allowed to install hurricane screens at their own expense if the proposed screens have been approved in writing and in advance by the ADRC, and if they are installed and fully removed as referenced in Article 18, Weather Emergencies. Details on approved hurricane screen specifications are on file with HOA office, as are ADRC Request Forms for installation requests.

(v) ADRC approved sun/wind shades may be installed at the terrace edges only. Shades may roll down to the tops of railings to block the sun or to the tops of mop tiles to block wind. Shades are only to be down during times when sun and/or wind affects materially and adversely the condo owner (which determination shall be made by the HOA office). Shades must be raised each evening and may not be visible from outside the condo building when not down. Details on approved sun/wind shade specifications are on file with HOA office, as are ADRC Request Forms for installation requests.

(vi) ADRC approved curtains may be installed at the terrace edges only. Curtain rods must be installed above the arch/window openings and the curtains must be floor-length and in good repair with no holes, tears, or tattered edges. Curtains must be tied back when owner is not in residence. Details on approved curtain specifications are on file with the HOA office, as are ADRC Request Forms for installation requests.

c) No homeowner shall install or permit to be installed any window mounted or through the wall mounted air conditioning unit in his condominium.

d) The Manager must be notified at least seven days in advance, in writing, of any renovation work naming the type of work, the contractor involved, and the day(s) and time of work.

e) Owners are responsible for the actions of their contractor and their personnel and may be advised by the Manager of any restrictions or special requirements with respect to the work.

f) Renovation & maintenance work is restricted to Monday through Friday between the hours of 8am to 6 pm, and Saturdays between the hours of 10am to 4 pm. Contractor or homeowner may request an overtime extension permit. The HOA office will be given at least 24hrs. in advance to review and approve or reject such request. Construction schedules are subject to change by HOA manager with previous notice. No work or construction on Sundays or on the following Holidays:

(i) New Year's Day

(ii) Easter Friday, Saturday, and Sunday

(iii) July 4th, Independence Day

(iv) September 16th, Mexican Independence Day

(v) Thanksgiving Weekend including Thursday, Friday, Saturday and Sunday.

(vi) Christmas Eve

(vii) Christmas Day

g) Owners are responsible for any damage resulting from renovation work irrespective of whether the damage was caused by themselves or their contractor.

h) Supervision of personnel is the responsibility of the Owner who is required to provide restroom facilities within the private unit as well as an interior location for rest breaks and meals. Under no circumstances will personnel be permitted to use Public Areas or Common Areas for rest or meal breaks. Personnel arriving in their own vehicles must park in a designated location. All delivery trucks will have up to 30 minutes to unload construction materials or machinery in front of the construction site. Contractor vehicles cannot remain on property after work hours other than designated areas. Vehicles not following this rule or any other parking rule, will be towed away at owner's expense. Personnel are expected to be

properly attired. The following will not be permitted on property:

- (i) Drinking alcoholic beverages and the use of illegal drugs
- (ii) Disorderly conduct
- (iii) Pets on construction site
- (iv) Loud radios or other noises not directly related to construction equipment
- (v) Soliciting
- (vi) Remaining in the development after business hours
- (vii) Contractors will request authorization to Administration when they need a night watcher for their construction site, if approved, he should always remain in the designated area

i) Owners are responsible for insurance relating to their project.

j) Owners are responsible for the removal of trash and packing materials before those items become a nuisance and in no event less often than daily. Contractors are responsible for constantly cleaning hallways, walkways and common areas around their construction site, keeping those areas out of trash and soil at all times; also, must clean up all trash and debris on their designated construction site constantly. All trash must be covered or in special containers other than the ones provided by the HOA on common areas. All trash must be removed daily to the designated area.

k) Vehicle drivers must check in with security with the name of the owner they are working for, and that owner's unit number, or the name and place for any deliveries.

l) Please note that certain types of work may affect the coverage of warranties by the Developer or Contractor. To the extent this affects Common Area warranties this work will not be approved.

m) Construction activities by the Developer will be conducted subject to the Manager's consent.

n) Any accident or incident occurring on property must be immediately reported to the HOA office and PDM security.

(i) An accident is defined as an occurrence of any bodily injury to a person.

(ii) An incident is defined as a theft, damage or abnormal situation at the property.

6. PEST CONTROL

The Master Administration and Managers of the Sub-condominium will arrange for exterior pest control services that meet PDM standards. Use of other pest control services is not permitted. Owners are responsible for, and required to provide, effective interior pest control services that meet PDM standards.

7. OCCUPANCY

7.1 Use by Owners.

- a) For several purposes, primarily those of security, the Master Manager needs to be advised of unit occupancy.
- b) Occupancy information will be provided by the Rental Program for all units participating in the Rental Program.
- c) Owners occupying their home on a permanent or semi-permanent basis need to notify and register their Sub-condominium Manager of their occupancy start date and end date, as appropriate. This can most easily be accomplished by visiting their designated Reception Area, and notifying the Receptionist on-duty. Please contact the Manager upon departure. The maximum allowable occupancy per Residential Unit is defined as follows, provided that such occupants must include at least one person age 21 or older ("**Adult**"):

2 Bedroom Unit:	6 adults
3 Bedroom Unit:	8 adults
Penthouse:	8 adults
Pool Bar/Restaurant Unit:	72

- d) Notwithstanding the above, the Unit occupancy maximums may be increased by up to 2 children under the age of 6, provided that the total number of children under the age of 6 is less than 200% of the number of adult occupants (e.g. for a 3 bedroom Unit, an occupancy of 6 children and 4 Adults is acceptable, but an occupancy of 8 children and 2 Adults is not).

- e) An Owner can have a registered guest at the unit when:
 - (i) The total amount of people per unit is not exceeded.
 - (ii) They register properly at reception or restaurant and sign the compliance for the Manager Rules for overnight occupancy or agree to the Manager Rules for common area usage.
 - (iii) At least one of the registered guests is of legal age (18 or older).

7.2 Rental Rules. Owners may not lease, license or rent any Residential Unit ("**Rental**") without complying with the following:

- (i) Occupancy limits specified in Section 7.1 shall not be exceeded.
- (ii) Owner shall notify in advance Manager of each such Rental, the number, name and age of each Occupant
- (iii) Occupants may not have Invitees or pets, except that Renters under a Rental Agreement for 4 consecutive weeks or more may have Invitees and pets to the extent permitted under these Rules.
- (iv) Non-Adult Rental Occupants must be accompanied by an Adult Rental Occupant at all times. Adult Rental Occupants shall maintain identification at all time and show it to security staff upon request.
- (v) Rental Occupants shall be instructed that they are not entitled to use the Common Area of any other Sub-Condominium.
- (vi) The Manager's office is not a rental office and is not required to respond to requests for services beyond their Manager Management dues that are offered to all Owners, such as the

care and maintenance of common areas, etc. The Manager's office may elect to provide such services for an additional charge to the Rental Occupant's paid in advance.

(vii) Rentals shall be subject to a written agreement which shall set forth all of this Section 7.1 in bold print, a copy of which shall be maintained in the residential Unit. Rental Owners shall provide such written Rental agreements upon Manager's request.

(viii) Owners who Rent their units must first have an approved property manager locally available to take responsibility for the needs of their renters.

(ix) Owners are liable for any violation of these Rules by Rental Occupants. Without limiting the above, Owners may be subject to fines and other remedies permitted by these Rules or Manager Directives resulting from Rental Occupant violations.

(x) By Manager Directive, Manager may establish additional rules to control unauthorized access, and to impose fines on Rental Owners for violations by the Rental Owner or its Rental Occupants.

7.3 Property Managers and Other Contractors.

The Manager or Board shall have the right to approve or disapprove any Contractor which an Owner proposes to hire, which approval shall not be unreasonably withheld, conditioned or delayed. Once a Contractor is approved, such approval may be suspended or revoked for good cause including material violation of this Section 7.3. Owner's use of a Contractor shall be subject to the following limitations:

(i) Owner shall notify in advance Manager of each such Contractor (including each employee thereof requesting entry into the Condominium. All Contractors must be Adults and shall maintain identification at all time and show it to security staff upon request. Contractors may bring onto PDM and the Sub-Condominium only those persons who are necessary for performance of the contracted services.

(ii) Contractors may not have Invitees or pets.

(iii) Contractors may use the boat transportation for themselves and small amounts of supplies and materials, provided space is available, but shall transport any large amount of supplies and materials by road. Contractors (other than incidental use preapproved by Manager) shall provide their own transportation while within the Condominium. However, at all times, Owners and Occupants shall have priority to seating over any Contractors.

(iv) Contractors shall not use any Common Areas for recreational purposes.

(v) Except where the contracted work so requires, Contractors shall not enter the Condominium before 8:00 AM and shall leave by 5:15 PM, subject to additional hours as may be approved by Manager in writing for reasonable cause (including the performance of services that can only be provided after-hours).

(vi) Contractors shall acknowledge in writing all of these rules.

7.4 Invitees.

Owners shall comply with the following regarding Invitees, except as provided in Section 17 (Special Events):

(i) Invitees shall be accompanied by Owners over the age of 12 at all times throughout PDM including Common Areas.

(ii) Owners shall limit the number of Invitees at any time to a reasonable number, to be determined by Manager Directive depending on the date, circumstances and general level of Condominium activity, but not more than 6 persons.

(iii) Owners shall notify in advance Manager of each such Invitee.

(iv) Invitees shall not have pets.

7.5 Commercial Unit Use.

Commercial Units shall be designed and intended to provide goods and services solely to the Owners, Occupants and Invitees. Commercial Owners are not entitled to any Invitees or pets.

8. PROPERTY TAXES

Each individual Owner is responsible for the payment of property taxes relating to their home.

9. NOISE

a) General

(i) No resident shall make or permit any disturbing noises in any home or do or permit anything which will interfere with the rights, comforts, or convenience of other residents.

(ii) All residents shall keep the volume of any radio, television, stereo, musical instrument or other sound producing devices in their homes sufficiently reduced at all times so as not to disturb other residents.

(iii) Written complaints should be directed to the Manager. The decision of the Administration will be final subject only to Board review.

10. VEHICLES

a) The number of vehicles permitted per unit is limited to one parking space outside the building in the parking area.

b) Vehicles must be self-propelled. No trailers or boats of any kind may be parked in any parking space or driveway. Trailers and boats must be stored in the homeowner's garage or designated area.

c) Vehicles must be readily mobile.

d) Vehicles must fit into a single parking space.

e) Unless inside the Owner's garage, no long term parking of vehicles in parking areas is allowed.

f) Speed limits must be respected.

g) Children must be at least 12 years of age to operate electric or motorized vehicles, and either possess their own insurance or be covered under insurance of parent or legal guardian.

h) Homeowners will be subject to fines and/or confiscation/towing at the vehicle owner/vehicle renter's expense in the following instances:

(i) Vehicles which violate any manager rule or regulation.

(ii) Children under 12 years of age driving.

(iii) Children or adults driving recklessly in the sole opinion of PDM.

- (iv) Vehicles which damage other property.
- (v) Vehicles which, in the opinion of PDM, constitute a risk to the safety of the occupants or others.
- (vi) Vehicles carrying more than the number of passengers that can be accommodated seated.
- (vii) Vehicles which are parked occupying more than one space.
- (viii) Vehicles parked in a manner that is considered dangerous and/or that restricts the access of emergency equipment will be removed on an expedited basis and an additional charge to the Owner will be incurred. If possible, the operator of the vehicle will be notified before it is removed however, the Master Manager will treat this as a courtesy only and is not obligated to make a notification.
- (ix) Vehicles driving at night without proper illumination.
- (x) Security personnel employed by or sub-contracted by the Master Manager may be used to enforce these violations. Owners may be cited for children driving, driving recklessly, and multiple violations will result in escalating fines.
- i) Overnight parking of trucks on streets is not permitted. Exception requests may be made by contacting the Master Manager at least 24-hours in advance stating the reason for the exception request, the make, model and license number of the truck, the number of the truck, the number of nights it is to be parked overnight and the proposed location. Upon approval, a Parking Permit will be available for pick-up at the Master Manager's office and must be displayed on the vehicle.
- j) Repeat offenders may lose vehicle privileges.
- k) From time to time the Manager may issue temporary or permanent directives regarding parking so as to maintain parking in a safe manner that is consistent with local and state laws, regulations or governmental agreements.

11. TRASH, GARBAGE DISPOSAL, RECYCLING & BUILDING MATERIALS

- a) For health reasons, homeowners and occupants must place garbage in secured plastic containers located on each floor.
- b) No one shall place trash, garbage or their refuse in the Common Area, except in an appropriate closed receptacle.
- c) Recycling is encouraged. Recycling receptacles are located in all basement trash rooms.
- d) No Garbage shall be put in the hallways.
- e) All garbage shall be regularly removed from the Unit and shall not be allowed to accumulate.
- f) There is absolutely no storage of recycling boxes or garbage bags at your front door.
- g) All trash must be bagged. Bagging helps keep our trash receptacles clean and prevent "fly away" trash. It also keeps loose trash from leaking out of the drainage holes at the back of the dumpsters.
- h) Always close the receptacle lids. Please finish each trip to the trash room by closing the lid.
- i) No large items are to be left on or next to the receptacle.
- j) Fines for violation of garbage disposal rules and regulation will be assessed on a case by case basis.

k) Regular trash pick-ups are designed to accommodate trash generated in the normal course of living. Special pick-ups are required for the removal of other trash, including but not limited to furniture boxes, packing materials, plastic sheeting, wrapping paper, moving materials, etc. A Benefited Assessment will be required for special pick-ups.

l) Owners will be responsible for the acts of their guests with respect to trash regulation.

m) All building material and trash must be kept in a safe, clean, and organized manner during the entire period of construction or renovation.

12. USE OF THE POOL AREA

a) Hours: 7:00 a.m. - 11:00 p.m.

b) NO LIFEGUARD ON DUTY; SWIM AT YOUR OWN RISK!

c) The pool and hot tub are exclusively for the use of homeowners in good PDM HOA standing, their guests and renters.

d) No glass containers permitted.

e) No smoking is allowed in the pool area, including the pool, hot tubs, pool deck or pool bar.

f) Keep pool area clean; discard all trash into trashcans.

g) No food consumption permitted while in the pool or hot tub or within 6 feet, except at the swim-up bar.

h) No loud music. Personal music devices only.

i) Appropriate swim attire is required.

j) Swimmers who are not toilet trained must wear swim diapers.

k) Children under 10 years of age must be supervised by an adult while in the pool area.

l) Individuals under the age of 16 are not allowed in the "Original" round hot tub.

m) No children under the age of 12 are allowed in the "New" oval hot tub alone. Children ages 5 to 11 must be accompanied by an adult while in the oval hot tub.

n) No diving.

o) No running or rough play.

p) Do not remove pool furniture and umbrellas from the pool area.

q) All persons must comply with the requests of the PDM HOA Staff regarding personal conduct.

r) Any persons violating these rules may be asked by the PDM HOA Staff to leave the area.

s) No pets are permitted in the pools.

t) Fire pits are available for use between the hours of dusk and 11:00 p.m.

13. USE OF THE BEACH:

a) Owners, residents and others authorized may access beach areas via established walkways and paths.

b) The Manager will establish rules and guidelines for acceptable beach activities and conduct

c) There is no lifeguard on duty. Homeowners and occupants swim and use the beach at their own risk.

- d) As with the pool, all homeowners and their guests agree to use the beach at their own risk. All children should be closely monitored by an adult.
- e) No boats may be launched from and or stored on the beach.
- f) Canoes, kayaks and paddle boards may be launched from the beach, but they may not be stored on the beach, except for those owned by the HOA for general use of owners and guests.
- g) Homeowners and occupants, as well as their guests, must clean up after themselves when using the beach. No trash is to be left on the beach or in the water.
- h) No fires or fireworks are permitted on the beach without prior permission.
- i) Glass containers are not permitted on the beach at any time.
- j) Bonfires are not permitted in any location other than the beach. Beach bonfires require a permit from the Master Manager which must be requested at least seven days in advance and indicating the times, days and location of the bonfire. Owners are responsible for physically supervising the bonfire at all times and for removing and properly disposing of debris afterward.

14. ANIMALS

a) Stray, Feral and Wild Animals

- (i) Stray, feral, or wild animals may not be fed or otherwise attracted to the common areas or limited common areas. Stray and feral animals that are discovered in the outdoor common areas and limited common areas should be reported.

b) Pets

- (i) Domesticated pets that may be kept inside the unit provided that they do not become a nuisance to any other Unit Owner are permitted.
- (ii) The following Pets will be permitted.

- Cats and dogs
- Small birds
- Small caged rodents (gerbils, hamsters, etc.)
- Fish
- Any other pet that is approved in writing by the Board of Directors.

- (iii) The Following Pets will not be permitted.

- Any animal that is not permitted for possession or sale by any federal, state, or local agency.

- (iv) Homeowners shall be responsible for immediately picking up and disposing of their pet's waste in common areas.

- (v) All pets must be kept on a leash when outside the home or Unit, except on public beaches and within the dog park.

- (vi) All cats and dogs must be registered with the Manager and must wear a collar with nametag containing the name of the owner. This is for protection of the pet, as well as the homeowners.

- (vii) Pets must be well kept. Pets may not adversely affect the health or enjoyment of the common areas. This includes, but is not limited to, noise, odor, or waste spillage in the common areas or the limited common areas of other residents.

- (viii) Pets found unattended in the common areas or limited common areas of other residents will be turned over to an Animal Control officer.

(ix) The pet owner is solely liable for any damage or injury caused by the pet. In particular, the pet owner shall indemnify and hold harmless the property, its Officers and employees from any liability caused by the pet.

(x) The Owner's Association, its Officers, its employees, emergency personnel and repair personnel, may occasionally enter a particular unit during the regular course of business, or during an emergency. While such persons shall take reasonable precautions to prevent injury or loss of a pet, the pet owner shall indemnify and hold harmless the aforementioned persons from any liability caused by the injury or loss of the pet.

(xi) Violations of pet requirements may result in penalties, at the discretion of the Manager. Repeated or egregious violations may result in the eviction of the pet(s), at the discretion of the Manager.

c) Service Animals

(i) Paraiso del Mar will comply with all local, state and federal laws in regard to service animals.

(ii) The owner of the service animal is solely liable for any damage or injury caused by the service animal. The owner of the service animal shall indemnify and hold harmless the Paraiso del Mar Unit Owner's Association, its Officers and employees from any liability caused by the service animal.

Security personnel employed by or sub-contracted by the Master Manager may be used to enforce these requirements. Owners may be cited for off-leash pets and multiple violations will result in escalating fines.

15. SECURITY

The Master Condominium Regime provides security service for Paraiso del Mar.

16. BOAT TRANSPORTATION

Boat and Land transportation provided by the Homeowners' Associations are only for homeowners who are current in their assessments and their guests.

a) An owner's guest is a person that goes only to a particular unit and is authorized by the owner to visit the unit. Workers hired by the owners will be considered guests of the owners and will be allowed on the boats provided they are not carrying any tools and prior notification has been given by the homeowner or homeowners' property manager. This will be closely monitored by HOA management to make sure it is not being abused. Owners will have first priority on both boat and land transportation vehicles followed by guests and workers respectively.

b) All Property Managers and/or their representatives are required to register with the manager, so the sub-manager will maintain a list of approved property managers. This list will be given to the boat captain(s). All property managers will be allowed access to boat transportation on a space available basis. Owners and their guests will have priority.

c) Baby or pet sitters working for owners or their guests may use the boats.

d) HOA authorized employees are allowed to use the transportation.

e) All third party service providers carrying tool or construction equipment must travel by land to the property.

f) The homeowners' association office should receive email notification in advance informing the office of the use of the unit by a guest or renter. Guests arriving without prior notification by the owner will be allowed over to the property but will not be allowed access to owner's unit until confirmation from the owner is received. The guest will be responsible for contacting the owner in order for the owner to provide the authorization to the HOA. Only with this notification will the guest be allowed to enter the unit. Names of all guests must be included, the number of guests and the principal contact name must be included. Owners delinquent in their assessments will be notified in advance when their use of the boats has been restricted as per the Rules & Regulations.

17. SPECIAL EVENTS

An Owner may organize a special event (whether within a Residential Unit or Common Area) to include more than 6 Invitees ("**Event**"), subject to Manager's reasonable approval, which shall be granted, conditioned or denied in good faith and based on a number of factors, including the number of Events by such owner, the proposed size and location, the impact on potentially anticipated Sub-Condominium Owners and Occupants at the time, and the burden of PDM transportation and other Common Services. If Manager denies or conditions approval for an Event, the requesting Owner may petition for review by the Board.

a) An Owner shall notify in advance Manager of each such proposed Event and shall provide such supporting information as Manager reasonably requests.

b) Prior to the Event, Owner shall provide an invitee list.

c) Manager may impose a reasonable fee for PDM transportation or require that the Owner provide its own transportation to/from the Mogote and on the Mogote.

d) Manager may require Owner to pay for additional security to be hired by Manager to monitor and manage the Event.

e) All Event Contractors must be Adults shall maintain identification at all time and show it to security staff upon request.

The Manager may permit reasonable portions of the Common Areas to be utilized for Events from time to time. Efforts will be made to advise all Owners and Occupants who may be affected by Events. However, no guarantee of advance notice may be provided. In some cases, these special events may result in the closure, or restricted access, of reasonable portions of the Common Areas to other Owners. Manager, with the approval of the Board may elect to allow portions of the Common Areas to be rented to third parties from time to time for a rental fee; however, no such rentals shall prohibit access to and use of the Commercial Unit, buildings, pool or beach.

18. WEATHER EMERGENCIES

ADRC approved roll-up style hurricane screens may be installed at the terrace edges. This style may be installed continuously, and may roll down to the tops of railings to block the sun or to the

tops of mop tiles to block wind. For these purposes, hurricane screens are only to be down during times when sun and/or wind affects materially and adversely the condo owner (which determination shall be made by the HOA office). Hurricane screens must be in the full up position when Unit occupants are not physically present in their condos (e.g. screens must be raised when the Unit is occupied but the occupants are out for periods of time (except during actual hurricane conditions). During the months of August 1st through October 15th, both roll-up and tent style hurricane screens and extruded aluminum shutters may be installed and implemented continuously. For tropical storms, tent style hurricane screens may be installed on the walls and roll-down style hurricane screens may be rolled down to the terrace floors, and extruded aluminum shutters may be drawn closed up to 5 days prior to the time when La Paz is in the future path of a named tropical storm as determined by the National Hurricane Center / National Oceanic and Atmospheric Administration's (<http://www.nhc.noaa.gov/>) and/or Civil Protection recommendations/alerts, and must be removed/rolled-up/retracted within 7 days after the storm passes La Paz or the storm is no longer a threat. During all other times, wall mounted style hurricane screens must not be installed on the building and must be stored out of sight on the owner's property.

19. ASSESSMENTS & PAYMENTS

Annual assessments for each year are established and approved at the prior year annual owner's meeting, which is generally in November. One fourth of those annual assessments are due each quarter. They are denominated in U.S. dollars, but may be paid in either U.S. dollars or Mexican pesos at the exchange rate on the remittance date. Pre-authorized credit card payments or direct bank drafts are encouraged to ensure timely remittance of quarterly assessments. Owners may obtain pre-authorization forms from the Community Manager (hoapdm@gmail.com). Personal checks may also be used if sent to the Associa Lockbox.

All owner's accounts will be administered in accordance with the following rules:

- a) Quarterly HOA assessments are due and payable on the first day of each quarter
- b) Owners are given 30 days to remit their quarterly assessments
- c) If payment in full is not made within 30 days, the owner's HOA account is delinquent
- d) Delinquent accounts are charged a \$150 administrative fee for issuance of a collection letter and interest on the delinquent amount is assessed at 15% per year, non-compounded; each subsequent month that a delinquency exists, another collection letter will be issued and another \$150 administrative fee will be assessed
- e) The HOA Board has the power to file liens on units with accounts delinquent for 180 days or an amount exceeding \$5,000; in these cases, the Board may also file the delinquency with the owner's home country credit agencies, if it deems this step to be appropriate and cost effective; the Board may also pursue lien foreclosure should it be appropriate

No unpaid assessments, fees, interest or penalties shall be discounted or settled for less than payment in full unless the Board passes a resolution to do so. No single Board member, HOA

employee or Associa employee shall have the right to offer, negotiate or accept a discounted settlement.

Unit assessments will not be split. In the case of multiple owners, the unit must designate one owner to be accountable for financial matters.

Any and all funds received by the HOA will be applied to owner accounts in the following order: fines, fees, interest, then the oldest unpaid assessments, and lastly to the newest unpaid assessments.

Owners of units with delinquent accounts may not:

- Vote or participate in owner meetings
- Make application to the ADRC
- Run for or hold any elected HOA position

Use common assets, including, but not limited to boats, vans, swimming pools, tennis/pickleball courts, fire pits, soccer fields and all common areas except as required by law.

Voting.

Only “Residential Units” in good standing will be allowed to vote. Good standing shall be defined as current on all HOA dues as assessed. “Residential Unit” shall mean any building or part of a building located in a private unit and to be used and occupied as a single-family residence

20. FINES & VIOLATIONS

When an owner, his renters or his guests are not in compliance with these rules, a violation has occurred that will be addressed by the Community Manager or HOA Board. Violations are generally divided into two categories:

- a) Those that are related to use (use violations) are easily avoided and/or corrected.
Common examples of these violations include hanging towels or garments on decks, glass in the pool area, dogs off leash, excessive noise, smoking in the pool, underage children in Jacuzzies or unsupervised children.
- b) Those that are related to unapproved installations or modification to units or common areas (installation violations), which generally require a longer time period to correct.
Examples of these violations include installing unapproved doors or windows, affixing items to common property, installing unapproved hurricane screens or any unapproved alteration to the exterior of units.

Although renters and guests occasionally commit rules violations, the unit owner’s account will be charged with any resultant fines. It is the responsibility of the owners to ensure all renters and guests are familiar with these rules.

Use Violations Upon becoming aware of a use violation, the Manager will contact the owner or occupant (which shall be deemed notice to the owner). This contact may be in person, in writing (mail, email, personal delivery, or posted on unit door) or by telephone. The nature of this contact is to make the owner or occupant aware that a violation has occurred and establish the expectation for a solution. This is a warning and will not result in a fine being levied if corrective action is taken immediately. However, in the following circumstances, fines will result:

- a) If the violation is not cured immediately a \$25 fine will be levied and charged to owner's account.
- b) Any subsequent violations of the same type (noise, towels on balconies, glass in pool area, etc.) within three months will be fined at \$25, escalating \$5 for each such violation (maximum of \$250/day).

If an owner receives three use violations, of any nature, within 12 months, regardless of whether the violations resulted in warnings or fines, the fourth and all subsequent violations will result in a \$25 fine that will escalate \$5 per occurrence (maximum \$250/day).

Installation Violations. Upon being made aware of an Installation Violation, the Manager shall contact the Owner. Depending on the nature of the issue this contact may be in person, in writing (via mail, personal delivery or posting on the Unit door), via email or by telephone. The nature of this contact is to make the Owner aware of the Violation and create the framework for a solution. If such Installation Violation is not being corrected timely, then at any time thereafter in the Manager's discretion, a formal written Notice of Violation will be issued by the Manager. This notice will indicate the nature of the violation and provide three (3) business days for correction (subject to the Manager's discretion provisions below).

In the event the corrections are not made within the applicable cure period, the following fines will be imposed until corrected:

\$ 25.00 USD per day for the first 15 days
\$100.00 USD per day for the next 15 days
\$250.00 USD per day thereafter

If an installation Violation is not corrected within 30 days after notice, then the Manager shall have the right but not the obligation to correct such Installation Violation (and enter the Violator's Unit if reasonably necessary to do so), in which case 105% of the reasonable cost of such corrective work shall be assessed against the Violating Owner. The above per diem fines shall accrue until substantial completion of the corrective work by the Manager.

Fine Assessments. Fines are levied as Penalty Assessments against the Owner and will be collected by the Manager, as the case may be. Nonpayment of Penalty Assessments will result in collection action as described elsewhere in this document.

Fines will be billed as penalty assessments to the owner account and added to their monthly assessment.

Manager Discretion. Because the nature, nuisance and cure of Violations can vary, the

Manager shall have the discretion to extend the applicable cure periods and reduce the fine rates, to the extent specified in the initial notice of the Violation. The Manager shall exercise such discretion reasonable, consistently on a non-discriminatory basis. Once the original notice is given, the Manager's above discretion shall cease, and the Appeal process below shall apply. In addition, in the case of Violations constituting a risk of personal injury or property damage or major nuisance, the Manager shall have the discretion to reduce or eliminate any cure periods.

Appeal. Once a notice of Violation is imposed, the Manager shall have no discretion to waive the Violation, change the specified cure period or reduce the fines.

An Owner shall have the right to appeal to the Board the existence of a Violation by delivery of written notice to the Manager (who shall forward it to the Board) within 30 days after the Notice of Violation detailing why the Violation does not exist or seeking waiver of the Violation. The Board shall consider such appeal and make its final determination promptly. However, during such appeal period, all cure periods shall continue to run and fines will continue to accrue.

Provided that imposed fines have been paid first, an Owner shall have the right to appeal to the Board the amount of the fines imposed, by delivery of written notice to the Manager (who shall forward it to the Board) within 30 days after payment of the fines detailing the circumstances why the fines imposed are excessive or otherwise unfair. The Board shall consider such appeal and make its final determination promptly. If the Board reduces or eliminates any fines, they shall be returned within five (5) business days of such determination with interest thereon at 5% per annum.

21. DESIGN REVIEW COMMITTEE (ADRC)

Architecture & Design Review Committee (ADRC) is responsible for a wide range of approvals and opinions relating to the ambience and operation of Paraiso del Mar. The Master Condominium Rules and Regulations make it the responsibility of each Owner to seek ADRC approval for any modifications or improvement that are Visible from Neighboring Property, and any member (or the HOA office) can provide an ADRC request form for the approval process. The definition of Visible from Neighboring Property makes no distinction between permanent and temporary.

The ADRC utilizes the sub-condominium Polygon B-500 and the managed units of Polygon B-501 salvo Condominium Regime Manager Rules as well as the Polygon B HOA Standards to guide and govern their approvals and enforcement documents.

22. GARAGE RULES AND REGULATIONS

a) GARAGE COMMON AREAS

1. Occupants are not permitted to post any signs or notices, including For Sale or For Rent signs, to any portion of the garage or garage stalls.
2. No extensive mechanical work and no painting, spraying or other type of

fume- producing work may be done in the garage.

b) DISPOSAL OF MOTOR OIL

Not permitted in Garage.

c) EMPLOYEES OF THE ASSOCIATION

The primary responsibility of carrying out the day to day operation of the garage is the function of the Management Company. Employees are under the guidance of the Management Company. Any suggestions or comments regarding any employee should be made directly to the Management Office.

d) RESALES

Written notice of the sale of any garage unit must be provided to management in advance of closing and written notice of same must be provided within 30 days. Such notice shall include a copy of the sales contract.

e) REGISTRATION OF VEHICLES

1. All vehicles parked in the garage must be registered with the Management Office and have a Paraiso del Mar decal displayed on the front windshield. All decals must be affixed on the inside lower left corner of the front windshield.
2. It is the responsibility of the occupant to notify Management in writing of any changes in address, license plate number, car make and phone numbers.

f) SECURITY

1. Cars should be locked when parked in the garage.
2. Be sure that the garage doors are closed and locked after you use them. Report non-functioning locks and doors to the Management Office.

g) SPEED LIMIT

All occupants must observe a maximum speed limit of 5 mph in the garage, and follow the posted directional arrows.

1. Storage of hazardous materials within the space is prohibited.
2. Items are stored at the risk of the occupant.

h) STORAGE OF ITEMS

1. The Paraiso del Mar Condominium is not liable for the theft or damage of any
2. Storage of hazardous materials within the space is prohibited.
3. Items are stored at the risk of the occupant.
4. The Paraiso del Mar Condominium is not liable for the theft or damage of any such items.
5. The Association may remove such items after written notice to the occupant.

i) i.i. NON RESIDENCIAL UNITS. Private Units are defined in the Master CCRs and include and residential Units ("Homes"), automobile garage Units

("Garages"), and storage rooms and lockers, and the commercial unit (the pool bar). "Owner" means the owner of a Unit. Garages and Garage Owners shall be subject to all of the rules and restrictions applicable to any Home, but their rights are limited as provided in this Sections 7.6 and G.

1. Garages may only be owned by (in whole or in part) the original Developer (and its successors) or a Home Owner, and may only be leased pursuant to a lease of one year or longer ("Long Term Leased") to a Home Owner (any such Owner or Long-Term lessee being a "**Permitted Owner**"). If a Home Owner also owns a Garage but transfers the Home and retains the Garage ("**Retained Garage**"), then the Board shall have an option, commencing 6 months thereafter and ending on the date that the Retained Garage becomes owned by a Permitted Owner, to purchase the Retained Garage for \$20,000 USD (in 2022, escalating annually by 3%). If a Garage is or becomes owned by or leased to anyone other than a Permitted Owner ("**Severed Garage**"), then the Board shall have an option, commencing immediately and ending on the date that the Severed Garage becomes owned or Long Term Leased to a Permitted Owner, to purchase the Severed Garage for \$20,000 USD (in 2022, escalating annually by 3%).
2. Any Garage not owned by or Long Term Leased to a Permitted Owner may not be used for any purpose whatsoever, and the Board may restrict access thereto by any person.
3. Garages may not be used as a residence, living quarters, for pets or for commercial purposes.

i.ii. Incorporation Conflicts. To the extent of any conflict or ambiguity between this Section 7.6 and the remainder of these Rules, this Section 7.6 shall apply. For the avoidance of doubt, the following Rules Sections, without limitation, apply to all Garages with respect to limitations and restrictions (but not rights), and the term "resident" is intended to include any Garage Owner: Sections 1, 2(b), 3, 4, 5, 6, 7.3, 8, 9, 10, 11, 14, 15, 19, 20, and G.